

The Facts at issue in Set One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff shall prepare and submit a proposed order and serve notice of entry of order.

5. 9:00 AM CASE NUMBER: L25-06872

CASE NAME: CAPITAL ONE N.A. VS. CHRISTOPHER CUEVAS

***HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

On 3/11/26, Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," as Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

Defendant did not file an opposition to the Motion.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Set One of Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff shall prepare and submit a proposed order and serve notice of entry of order.

6. 9:00 AM CASE NUMBER: L25-08198
CASE NAME: JPMORGAN CHASE BANK N.A. VS. CHRIS CHATMAN
*HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER
STIPULATION
FILED BY: JPMORGAN CHASE BANK N.A.
TENTATIVE RULING:

Background

Plaintiff filed a motion, on 12/30/25, to vacate dismissal and enter judgment pursuant to stipulation, plus an amended Motion on 1/29/26.

The Motion is unopposed, however, the Motion was originally scheduled to be heard on 3/17/26, and on that date, this court ruled that Plaintiff had not properly noticed Defendant of the motion or the hearing.

The Motion was continued to 6/9/26, 9am, and the court ordered the Plaintiff to provide Defendant notice of the Motion and the hearing.

As of this writing, 6/3/26, Plaintiff has not filed anything reflecting service of the appearance on 6/9/26.

Disposition

This matter will be dropped.

7. 9:00 AM CASE NUMBER: MSL19-02977
CASE NAME: BARCLAYS BANK VS. LYNCH
*HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON THE PLEADINGS FILED BY PLN ON
3/4/26
FILED BY: BARCLAYS BANK DELAWARE
TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings, as well as an accompanying Memo of Points and Authorities, and one of costs. The Motion and Memos were timely served by mail on the address for Defendant provided in the Answer.

Plaintiff also filed a declaration reflecting their attempt to meet and confer with Defendant prior to filing of this Motion, as required by CCP 439.